

STATE OF NEW YORK

9470--A

IN ASSEMBLY

January 6, 2026

Introduced by M. of A. O'PHARROW -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to enacting the "Edeedson 'Joshy' Cine, Jr. transparency act" requiring the release of certain surveillance footage to law enforcement agencies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "Edeedson
2 'Joshy' Cine, Jr. transparency act".

3 § 2. The general business law is amended by adding a new section 393-g
4 to read as follows:

5 § 393-g. Release of surveillance footage. 1. Definitions. For the
6 purposes of this section, the following terms shall have the following
7 meanings:

8 a. "Surveillance footage" means video recordings obtained through
9 security cameras located in public areas or private entities that may be
10 relevant to law enforcement investigations.

11 b. "Law enforcement agency" shall have the same meaning as in subdivi-
12 sion four of section 705.00 of the criminal procedure law.

13 2. Release of surveillance footage. a. Any person, firm or corporation
14 doing business in this state that possesses surveillance footage rele-
15 vant to an ongoing law enforcement investigation into a felony offense
16 believed to have been committed on the premises of such business shall
17 immediately release such surveillance footage to a law enforcement agen-
18 cy upon receipt of a formal written request by the law enforcement agen-
19 cy. Such written request shall provide details as to the relevance of
20 the surveillance footage to the specific law enforcement investigation.

21 b. When a person, firm or corporation doing business in this state is
22 aware, or should reasonably be expected to be aware, that a felony
23 offense has been or may have been committed on the premises of such
24 business or when a written request for release of surveillance footage
25 to a law enforcement agency is submitted to a person, firm or corpo-
26 ration doing business in this state pursuant to paragraph a of this

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14366-04-6

1 subdivision, such person, firm or corporation shall take reasonable
2 measures to ensure that such surveillance footage is not recorded over,
3 deleted or otherwise destroyed.

4 c. No retaliatory action shall be taken by a person, firm or corpo-
5 ration doing business in this state against any employee for complying
6 with a written request by a law enforcement agency for release of
7 surveillance footage pursuant to paragraph a of this subdivision,
8 regardless of any policy of such business regarding the retention or
9 release of such surveillance footage.

10 3. Exceptions to requirement to immediately release surveillance
11 footage. A person, firm or corporation doing business in this state
12 which has received a written request by a law enforcement agency for the
13 release of surveillance footage pursuant to paragraph a of this subdivi-
14 sion may:

15 a. Upon request by such person, firm or corporation, be granted a
16 reasonable amount of time to allow counsel for such person, firm or
17 corporation to review the request for the release of surveillance
18 footage and any applicable laws relating to such request or surveillance
19 footage prior to releasing such surveillance footage; provided, however,
20 that for the purposes of this paragraph, a reasonable amount of time
21 shall not be deemed to exceed twenty-four hours; and/or

22 b. Seek a court order to delay the release of such surveillance
23 footage in cases where the release of surveillance footage might incrim-
24 inate such business or violate individual privacy rights.

25 4. Penalties. Any person, firm or corporation doing business in this
26 state that fails to comply with the requirements of this section shall
27 be subject to penalties, which may include, but need not be limited to,
28 finest of up to one hundred thousand dollars per incident and civil
29 liability for any damages caused by the failure to release the footage
30 in a timely manner.

31 5. Reports. No later than one year after the effective date of this
32 section, and annually thereafter, the secretary of state shall prepare
33 and submit a report to the governor and the legislature detailing
34 compliance with this section and challenges experienced by both law
35 enforcement agencies and persons, firms, or corporations doing business
36 in this state resulting from the requirements of this section.

37 § 3. This act shall take effect immediately.